

**SUBSTITUTE FOR
HOUSE BILL NO. 4530**

A bill to amend 1974 PA 258, entitled
"Mental health code,"
by amending section 748a (MCL 330.1748a), as added by 1998 PA 497.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 748a. (1) If there is a compelling need for mental health
2 records or information to determine whether child abuse or child
3 neglect ~~has occurred or to take action to protect a minor where~~
4 ~~there~~ **who** may be ~~a~~ **at** substantial risk of harm, a ~~family~~
5 ~~independence agency~~ **department** caseworker or administrator directly
6 involved in the child abuse or **child** neglect investigation shall
7 notify a mental health professional that **the department initiated** a
8 child abuse or **child** neglect investigation ~~has been initiated~~
9 involving ~~a person~~ **an individual** who ~~has received~~ services from the



1 mental health professional and shall request, in writing, mental
 2 health records and information that are pertinent to ~~that~~ **the child**
 3 **abuse or child neglect** investigation. Upon ~~receipt of this~~
 4 **receiving a** notification and request **under this subsection**, the
 5 mental health professional shall review all mental health records
 6 and information in the mental health professional's possession to
 7 determine if there are mental health records or information that ~~is~~
 8 **are** pertinent to ~~that~~ **the child abuse or child neglect**
 9 investigation. ~~Within 14~~ **Not later than 7** days after ~~receipt of~~
 10 **receiving** a request ~~made~~ under this subsection, the mental health
 11 professional shall release ~~those~~ **the** pertinent mental health
 12 records and information to the **department** caseworker or
 13 administrator directly involved in the child abuse or **child** neglect
 14 investigation.

15 (2) The following privileges do not apply to mental health
 16 records or information ~~to which access is given~~ **released** under this
 17 section:

18 (a) The physician-patient privilege created in section 2157 of
 19 the revised judicature act of 1961, 1961 PA 236, MCL 600.2157.

20 (b) The dentist-patient privilege created in section 16648 of
 21 the public health code, 1978 PA 368, MCL 333.16648.

22 (c) The licensed professional counselor-client and limited
 23 licensed counselor-client privilege created in section 18117 of the
 24 public health code, 1978 PA 368, MCL 333.18117.

25 (d) The psychologist-patient privilege created in section
 26 18237 of the public health code, 1978 PA 368, MCL 333.18237.

27 (e) Any other health professional-patient privilege created **in**
 28 or recognized by law.

29 (3) To the extent not protected by the immunity conferred by



1 1964 PA 170, MCL 691.1401 to ~~691.1415~~, **691.1419**, an individual who,
2 in good faith, ~~gives access to~~ **releases** mental health records or
3 information under this section is immune from civil or
4 administrative liability arising from that conduct, unless the
5 conduct was gross negligence or willful and wanton misconduct.

6 (4) A duty under this act relating to child abuse and **child**
7 neglect does not alter a duty imposed under another statute,
8 including, **but not limited to**, the child protection law, 1975 PA
9 238, MCL 722.621 to 722.638, regarding the reporting or
10 investigation of child abuse or **child** neglect.

11 Enacting section 1. This amendatory act does not take effect
12 unless House Bill No. 5220 of the 103rd Legislature is enacted into
13 law.